



AI Advertising Disclosure Checklist

UK, EU and platform rules on one page, decided at brief stage

FORMAT

Decision path

LENGTH

4 sections

GATE

None

COST

Nothing

FOR: Marketing and legal teams running generative creative across more than one market.

TALECRAFTERS · SYNTHETIC MEDIA STUDIO · LONDON · EST. 2023

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A one-page decision path for whether a generative asset has to be labelled, covering the UK position, the EU transparency obligations that took effect on 2 August 2026, and the platform policies that are usually stricter than either.

A working summary written by a production studio, not legal advice. The regulation is moving. Check the primary sources and take advice before relying on this commercially.

HOW TO USE IT

- 01 Run this at brief stage, once per campaign, not per asset and not at delivery.
- 02 Answer section 1 to classify the asset. Section 2 gives you the obligation. Section 3 is the implementation.
- 03 Keep the completed sheet. The obligation is provable or it is not satisfied.

1. Classify the asset

TICK EVERY STATEMENT THAT IS TRUE

- ☐ A person appears who does not exist
- ☐ A real person's likeness or voice has been generated or manipulated
- ☐ The format implies a real customer, user or independent creator
- ☐ The product is shown doing something, or looking a way, that differs from reality
- ☐ The asset carries a claim requiring substantiation
- ☐ The asset will be served to audiences in the EU
- ☐ The asset will run on a platform with an AI-content policy

Any tick in the first four rows means you are in the deepfake or synthetic-persona category and disclosure is not a judgement call. The last two determine which rulebook is the strictest one applying to you.

2. The obligation, by jurisdiction

WHERE	THE RULE AS IT STANDS	PRACTICAL EFFECT
United Kingdom	No AI-specific rule in the Advertising Codes. CAP applies the existing prohibition on misleading by inaccuracy, ambiguity, exaggeration or omission.	Disclose where an audience would otherwise be misled. A disclosure that contradicts the ad's message means the message is the problem.
European Union	AI Act Article 50, enforceable from 2 August 2026. Deployers producing deepfakes must disclose that content is artificially generated, clearly and at first exposure.	Applies wherever the output reaches EU audiences, regardless of where you are established. Penalties to €15m or 3% of worldwide turnover.
Platforms	Self-declaration plus automated detection. The platform may apply a label you did not choose.	Contractual rather than legal, enforced by reach suppression and demonetisation. Usually the most immediate constraint.

Where more than one applies, the operative standard is the strictest, decided per placement. For most paid social running in Europe, that is Article 50.

3. Implementation

- ☐ Disclosure decision written into the brief, not the delivery note
- ☐ On-asset label, in the same visual field as the claim it qualifies
- ☐ Wording kept plain: "AI-generated" or "Created with AI". No hedging.
- ☐ Provenance metadata configured on export as well as the visible label
- ☐ Composition leaves room for the label rather than the label being added over a busy frame
- ☐ Model licence confirmed cleared for commercial use, for the specific model and version
- ☐ Signed release in the folder before rendering for any real likeness or voice
- ☐ No invented certification, award, ingredient or percentage anywhere in the asset
- ☐ Record kept: which model, which version, who signed off, what was disclosed, on which placement

4. The two carve-outs, and why they usually do not help

Article 50 reduces the obligation for evidently artistic, creative, satirical or fictional work, where disclosure need only reveal the existence of generated content without hampering enjoyment of the work. A stylised, obviously-constructed brand film may reach this. A creator-format testimonial does not, because the persuasive effect depends on it not reading as fiction.

There is a second carve-out for AI-generated text on matters of public interest that has been through human editorial review with a named person holding editorial responsibility. It is a publishing provision. It does not cover video and it does not cover advertising copy.

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If working through this turned up something you would rather not run yourself, that is what the studio is for.
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